Republic of the Philippines
OFFICE OF THE PRESIDENT
COMMISSION ON HIGHER EDUCATION

NOTICE TO PROCEED

RAUL G. BRADECINA
President
Partido State University
San Juan Bautista Street, Goa, Camarines Sur

Dear **President Bradecina**:

We are pleased to send you the attached Memorandum of Agreement (MOA) for the research program/project of Partido State University, titled *"Usipon Suanoy nin Tawong Lipod asin Lihi kan Agta sa Partido (Oral Literature on Supernatural Beings and Beliefs of Aetas in Partido)"*, which has been approved by the Commission as per Resolution No. R009-2017. Please note that the conduct and implementation of the said program/project may commence effective 28 March 2018, or not later than 7 days after the receipt of this notice.

The program shall be undertaken with the terms and conditions as stipulated in the Memorandum of Agreement (MOA). Thus, as the implementing institution, your university shall be responsible for ensuring the completion of the program in accordance with the approved Work Plan, Terms of Reference and Line Item Budget.

Please acknowledge and indicate date of receipt and acceptance of this NOTICE by signing in the space provided below. Keep one original copy for your future reference and send back the other original copy to the K to 12 Transition Program Management Unit, Commission on Higher Education Central Office, HEDC Bldg., C.P. Garcia Avenue, UP Diliman, Quezon City.

Very truly yours,

NAPOLEON B. IMPERIAL, CESO III
Deputy Executive Director IV
Commission on Higher Education

Conforme:

Received by : RAUL G. BRADECINA, PhD.

Date : June 4, 2018

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MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This Memorandum of Agreement executed by and between:

The **COMMISSION ON HIGHER EDUCATION**, a government agency, created and organized under Republic Act 7722, with office and postal address in Higher Education Development Center (HEDC) Building, C.P. Garcia Avenue, University of the Philippines Diliman, Quezon City, represented in this Agreement by its Chairperson, **PATRICIA B. LICUANAN, Ph.D.**, hereinafter referred to as the "**CHED**";

- and –

The **NATIONAL COMMISSION FOR CULTURE AND THE ARTS**, a government agency, with principal office address in 633 General Luna Street, Intramuros, Manila, herein represented in this Agreement by its Executive Director, **RICO S. PABLEO, JR.**, hereinafter referred to as "NCCA";

- and –

ATENEO DE MANILA UNIVERSITY, an educational institution duly organized and existing under Philippine Laws with principal office at Katipunan Avenue, Quezon City, Second District, 1108 Metro Manila, herein represented by its **President, Jose Ramon T. Villarin, S.J.**, and hereinafter referred to as the "**GRANTEE**",

WITNESSETH: That,

WHEREAS, the **NCCA** is mandated to coordinate with other government agencies to ensure the widest dissemination of artistic and cultural products among the greatest number of people across the country and overseas for their appreciation and enjoyment;

WHEREAS, the **NCCA**, pursuant to Republic Act 7356, exercises the function of giving grants for the development, protection, preservation and dissemination of Philippine culture and the arts;

WHEREAS, the **CHED**, in line with its mission to strengthen Philippine higher education, is mandated by Republic Act 10533 or the Enhanced Basic Education Act of 2013 to help ensure a smooth transition to the new K to 12 system, particularly with ensuring that the human resource capabilities of higher education institutions (HEIs) are not adversely affected during the transition period;

WHEREAS, the **CHED**, in accordance with this mandate has established the K to 12 Transition Program through Commission En Banc (CEB) Resolution No. 210-2015, to provide opportunities for development for higher education personnel with reduced workloads by offering a series of grants geared for continuing professional

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WHEREAS, the **CHED** and **NCCA**, as approved through CEB Resolution No.1034-2016, have formalized a partnership for the delivery of the "**SALIKHA": CHED-NCCA Grants for Creative Projects of the K to 12 Transition Program**, financial endowment for higher education institutions that are affected by the K to 12 Transition Period, who wish to engage in projects relating to the development of Philippine arts and culture for publication, exhibition, production, or other forms of public use;

WHEREAS, the **ATENEO DE MANILA UNIVERSITY** was identified as a **GRANTEE** of the SALIKHA Grants for Creative Projects, for the merit of the proposed project titled: "**Ethnographies of Philippine Auditory Popular Cultures (EPAPC)";**

NOW THEREFORE, for and in consideration of the foregoing premises, the Parties have agreed as follows:

ARTICLE I
RESPONSIBILITIES OF THE PARTIES

A. Joint Responsibilities of CHED and NCCA

The CHED and NCCA shall coordinate and jointly:

1. Agree upon operational and other guidelines for the administration of the Grant;

2. Create an Ad Hoc Committee, composed of technical experts from CHED and NCCA, which will be responsible for vetting accomplishments and outputs, providing technical assistance to grantees, and making recommendations to the CHED CEB-MANCOM;

3. Establish a Monitoring and Evaluation Team, composed of staff from the CHED K to 12 Program Management Unit and NCCA, which will:

    a. Coordinate with the members of the Ad Hoc Screening Committee in the review of accomplishment reports and outputs; and
    b. Monitor the progress of the projects through site visits, and monitor of submission of accomplishment and financial reports and outputs by the Grantees;

4. Ensure compliance with the terms and conditions, and the fulfilment of obligations by HEIs which were awarded the Grant; and

5. Issue a Certificate of Completion to the **GRANTEE** upon completion of the project and clearance of accountabilities.

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The CHED shall:

1. Provide funding assistance to **NCCA** to cover the operational costs of the grant implementation, including but not limited to, administrative costs, costs of project staffing, and monitoring and evaluation costs;

2. Provide funding assistance to the **GRANTEE** in the amount of **Php 9,999,976.80** ONLY for the implementation of the project titled: *Ethnographies of Philippine Auditory Popular Cultures (EPAPC)*, to be released in accordance with the approved Work and Financial Plan (Annex A);

3. Deposit the grant amounts to the bank account of the **GRANTEE**:

   a. The first tranche, together with the Notice to Proceed, shall be released after the approval of the final Full Proposal and Work and Financial Plan (WFP) by the Commission En Banc Management Committee (CEB MANCOM) and the submission of complete documentary requirements (Annex "B") by the **GRANTEE**;

   b. The second and final tranche shall be released after a positive evaluation of the progress of the project according to the Work and Financial Plan, and the completion of the required financial reports including liquidation of the first tranche; and

4. Reserve the right to impose sanctions, for any possible violation of the terms and conditions of the grant by the **GRANTEE**.

C. **Responsibilities of NCCA**

The NCCA shall:

1. Undertake the Program strictly in accordance with the approved Work and Financial Plan (as attached to the MOA between the CHED and the NCCA);

2. The **NCCA** will submit accomplishment/status reports and annual liquidation reports to CHED. The liquidation report should be certified by the Accountant, approved by the head of the **NCCA**, and verified by the Auditor of the **NCCA**;

3. Shoulder any and all expenses in excess of the approved Project Budget. Excess funds, if any, shall be returned to **CHED**. Such releases shall be subject to the submission of duly audited financial statements and liquidation report as provided under applicable Philippine Government accounting and auditing laws, rules and regulations;

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respective Project Staff, to undertake the implementation of the Program and ensure that they will carry out the project strictly;

5. Provide such support services and facilities as may be necessary to fulfill the requirement of the project including but not limited to the Project staff, their salaries/fees/wages, or such other remunerations, office space, facilities and equipment, as required, during the conduct of the project;

6. Receive, review, monitor, and ensure the timely submission of accomplishment reports, financial reports, and outputs of the **GRANTEES**;

7. Lead the coordination with the Ad Hoc Committee for the review of reports and outputs submitted by the **GRANTEES**;

8. Submit copies of status and progress report on each grantee to the designated staff of the CHED K to 12 Program Management Unit; and

9. Remain accountable to the **CHED** for the successful implementation and completion of the project. Failure to satisfactorily complete the program within the period stated in the approved Work and Financial Plan or any extensions granted shall mean forfeiture or discontinuance of the Project. The remaining balance of the fund shall revert automatically to the **CHED** subject to the applicable Philippine government accounting and auditing laws, rules and regulations.

D. Responsibilities of the Grantee

The Grantee shall:

1. Ensure prior submission to the CHED of the approved full Project Proposal, Work and Financial Plan and other documents listed in Annex B of this Memorandum of Agreement. These must be submitted in both soft copy form, and hard copy form along with a cover letter signed by the president or head of the LEAD HEI;

2. Properly utilize the funds provided by the **CHED** and shall see to it that these are used for the purpose for which the same are intended, in accordance with the approved Work and Financial Plan, and subject to usual accounting and auditing rules and regulations;

3. Issue an Official Receipt for every amount received from the **CHED**;

4. Separately keep and maintain any/all necessary accounting ledgers/records and receipts for the project which shall be voluntarily submitted whenever required and subjected to monitoring and evaluation of the CHED Authorized Representative/s and fully furnish the certified true copies of any/all required documents;

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5. Observe the provisions of Republic Act 9184 or the 'Government Procurement Reform Act' and its Implementing Rules and Regulations in realizing the program, and for the purpose of propriety, transparency and accountability;

6. Adhere to the prescribed accounting entries for booking up property/equipment purchased out of Program funds;

7. Establish a system of remuneration for involved deloaded researchers using the grant amount as a funding source, compliant with the terms for salary and honorarium of CHED Order No. 2, 2011, or the Implementing Guidelines on the Grant of Honoraria for CHED-Funded Programs and Projects;

8. Establish fair and equitable arrangements with other HEIs who will be research co-collaborators regarding the use of funding, set in place with their own Agreements;

9. Ensure that all outcomes of the research project are compliant with the terms of the pertinent University Research Board (URB)/ Institutional Research Committee (IRC) and Ethics committee, to ensure the highest standards of ethics and safety;

10. Submit reports and outputs to the **NCCA**, and annual financial reports and liquidation documents to the **CHED**, as required. The liquidation reports must certified correct by the **GRANTEE**'s Accountant, approved by the head of the institution, and verified by the Auditor of the institution. The full liquidation report shall also be submitted within sixty (60) days after the completion of the project;

11. Comply and coordinate with the **CHED** and the **NCCA** for any monitoring visit or presentation during the duration of the project;

12. Complete and submit all proposed outcomes of the project as indicated in the approved Full Project Proposal and Work and Financial Plan by the end of the project duration specified in the proposal, from commencement of this Agreement, as provided in Article IX;

13. Strictly enforce the terms of the grant, and ensure faithful compliance to the terms of the grant;

14. Present to the CHED and the higher education community, in a panel or a conference, a final report of all accomplished goals and outputs to be scheduled at the end of the term of this project; and

15. Return to the **CHED** any/ all unused balance of the program fund, including any/all income/ interest earned/ generated from the same, within forty-five (45) but not more than sixty (60) calendar days upon pre-termination or completion of the program without need of prior demand.

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ARTICLE II
OWNERSHIP OF PURCHASED EQUIPMENT AND FACILITIES

In the event that the project shall include provision for equipment and facilities, the **CHED** reserves the right of ownership over the purchased equipment and facilities covered by the grant until full liquidation by the **GRANTEE** is completed. The **GRANTEE** shall ensure proper labeling and inventory of the equipment and facilities. Transfer of ownership of the said equipment and facilities in favor of the **GRANTEE** shall ensue upon issuance of Invoice Receipt of property by the **CHED**, or completion of any other required accounting and audit procedure for this purpose. The **GRANTEE** is also required to submit a long-term Sustainability Plan detailing the resources to be used for maintaining the said equipment and facilities.

ARTICLE III
COPYRIGHT AND OWNERSHIP RIGHTS

Ownership and enjoyment thereof arising from this project shall be governed by the applicable provisions of *Republic Act No. 10055 (An Act Providing the Framework and Support System for the Ownership, Management, Use, and Commercialization of Intellectual Property Generated from Research and Development funded by Government and for other purposes), and Republic Act No. 8293 (An Act Prescribing the Intellectual Property Code and Establishing the Intellectual Property Office, Providing for Its Powers and Functions, and for Other Purposes)* including their respective Implementing Rules and Regulations, as well as existing and future policies of the **CHED** and/or the **NCCA** on Intellectual Property Rights such as but not limited to the following:

1. Any public dissemination (i.e. publication, broadcast, performance, exhibition, etc.) arising from the activities undertaken shall clearly establish and identify the **GRANTEE** as the source of the output and the **CHED** as the source of the grant;

2. All reports arising from activities undertaken shall be made in the name of the **GRANTEE**, as source of the output, and the **CHED** as the source of the grant. The names of the principal authors, and/or Team Members, shall be identified, recognized and included in the report;

3. The **CHED** and **NCCA** shall have the right to freely use all outputs for any of the purposes within each agency's legal mandate. The **GRANTEE**, acknowledged as the principal authors, researchers and/or Project Leaders/Research Team Leaders identified, recognized and included in the report, shall provide the **CHED** and **NCCA** written updates on the use of any of the data or information contained in the report and the purposes thereof, to ensure that government-funded researches and projects are utilized, continuously supported, and properly documented for the widest dissemination and use by the general public, and to encourage further studies and researches;

4. The **GRANTEE** shall ensure that the project conducted and its outcome would not violate the intellectual property rights of any third party;

5. Unless otherwise stipulated in an existing agreement between the creators of the

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property generated by the project, the ownership of the work will be awarded to the **GRANTEE**;

6. The **CHED** and **NCCA** will possess the first option to publicly disseminate completed outputs without prior approval or permission from the **GRANTEE** within one year from the date of completion of the project. This option may be exercised by either the CHED or the NCCA. The **CHED** and **NCCA** will have the right to produce or authorize to be produced, for staging, telecasting, broadcasting, or cinema or other forms of exhibition from time to time any output of the completed project. The agencies will also be allowed to include the completed outputs in their respective websites; and

7. The entry submitted must not have been submitted to any other grant-giving body or must not have received any grant previously or concurrently. The submitted entry must be new and original work; it may not be a work previously published, exhibited, broadcast, or otherwise featured in public expression. Furthermore, the entry must not be a completed project upon application, but may be a work in progress.

ARTICLE IV
ETHICAL CONDUCT OF RESEARCH

The Grantee has the responsibility of ensuring that the conduct of the research is in accordance with ethical research standards, including but not limited to, compliance with the provisions of *Republic Act No. 8371 (An Act to Recognize, Protect and Promote the Rights of Indigenous Cultural Communities/Indigenous People, Creating a National Commission of Indigenous People, Establishing Implementing Mechanisms, Appropriating Funds Therefore, and for Other Purposes)*, and *Republic Act No. 8485 (Animal Welfare Act of 1998)*. If deemed necessary by the CHED and/or NCCA, a written endorsement from the University Research Board (URB), Institutional Research Committee (IRC), Office of the University President, or equivalent, validating the project's adherence to ethical research practices, will be required.

ARTICLE V
RESEARCH DEALING WITH INDIGENOUS PEOPLE'S PROPERTIES, RESOURCES, KNOWLEDGE AND/OR HERITAGE

In case the project would utilize any property, knowledge, heritage, culture, tradition, institution and/or any other resource that belong to any indigenous community, the **Grantee** has the responsibility of securing the indigenous community's free prior informed consent and subject itself to the provisions and requirements relative to researchers and research outcomes provided in ***RA 8371 (An Act to Recognize, Protect and Promote the Rights of Indigenous Cultural Communities/Indigenous People, Creating a National Commission of Indigenous People, Establishing Implementing Mechanisms, Appropriating Funds Therefore, and for Other Purposes)*** and its Implementing Rules and Regulations, to protect and respect the community intellectual property rights of the concerned indigenous community.

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particular violation found, and the **GRANTEE** may be required to return any/all funds subject of this research project.

ARTICLE VI
SANCTIONS

The **CHED** reserves the right to take administrative, civil, and/ or criminal action including, but not limited to, the termination of the Grant, imposition of a repayment obligation for all financial privileges received under the Grant, disqualification from receiving any future grants from the K to 12 Transition Program, or instituting a case before the appropriate body against the **GRANTEE** for any of the following:

1. Refusal or failure of the **GRANTEE** to comply with the policies and guidelines herein stated, and with any provision of the Memorandum of Agreement between the CHED, the NCCA and **GRANTEE**;

2. Corruption, misrepresentation or fraud by the **GRANTEE** and/or any of its personnel serving as project lead/ team members;

3. Failure to submit the required accomplishment reports and/or financial reports according to the schedule given by the **CHED** and the **NCCA**;

4. Failure to timely complete the project under the Grant, including the implementation of the plan, within the approved duration;

5. Use of funds for purposes other than those indicated in the approved project proposal and Work and Financial Plan; and

6. Other acts as may be considered by the **CHED** and **NCCA** as inimical to the Republic of the Philippines and those that adversely affect the integrity of the Grant.

ARTICLE VII
TERMINATION

The **CHED** has the right to terminate the grant under any of the following circumstances:

1. Unjustified failure of the **GRANTEE** to implement the grant in accordance with terms and conditions;

2. Grossly unsatisfactory quality of the work-in-progress, as deemed by the **CHED** and the **NCCA**;

3. Breach or violation of contract by the **GRANTEE**;

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5. Justifiable grounds which prove the inability of the **GRANTEE** to complete the grant (e.g. poor health of the team lead/ project proponent, natural calamities);

6. Non-availability or exhaustion of funds; and

7. Such other acts as may be considered by the **CHED** and the **NCCA** as inimical to the interest of the government of the Republic of the Philippines and those that adversely affect the integrity of the **CHED** and the **NCCA**.

ARTICLE VIII
NON-WAIVER

The failure of **CHED** to insist upon the strict performance of any terms, conditions and covenants hereof shall not be deemed a relinquishment of waiver of any subsequent breach or default of such terms and conditions and covenants.

ARTICLE IX
EFFECTIVITY OF THE AGREEMENT

This Agreement shall take effect upon the release of funds to the **GRANTEE** for the project implementation and shall be in effect for the period indicated in the final proposal from the date of the receipt of the funds by the **GRANTEE**, unless further extension is requested in writing not later than sixty (60) days prior to the expiration of the contract period. The said extension should be for a valid cause and approved by the **CHED** in writing prior to the expiration of the original contract period. The request for extension does not entitle the **GRANTEE** to additional funds and any additional expense that may be incurred as a result of the extension shall be in the account of the **GRANTEE**. After a first extension is granted, no further extensions shall be allowed by the **CHED**.

ARTICLE X
LITIGATION AND VENUE

In the event judicial relief against any party is filed by CHED before the regular courts, for the enforcement of the terms and conditions in the Agreement, the parties agree that the venue of court action shall be exclusively in the proper courts of Quezon City.

ARTICLE XI
ATTORNEY'S FEES

In the event of any suit against the **CHED** for the enforcement of any stipulation of this Agreement or right under this Agreement is found baseless or inappropriate, the **GRANTEE** shall pay **CHED** attorney's fees which shall not be less than Fifty Thousand Philippine Pesos (Php 50,000.00), in addition to the other damages, expenses, costs of

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ARTICLE XII
EXECUTION IN COUNTERPARTS

This document constitutes the complete agreement between the parties herein and any subsequent supplements/additions hereto, as long as duly agreed upon and intended so by the parties shall form an integral part of this Agreement.

ARTICLE XIII
SEPARABILITY CLAUSE

In the event that one or more provisions contained herein shall be held invalid, illegal or unenforceable in any respect and for any reason, the remaining provisions shall remain valid, legal and enforceable.

ARTICLE XIV
DOCUMENTS COMPRISING THIS AGREEMENT

All annexes hereto attached are hereby expressly made an integral part of this agreement by reference, excluding inconsistencies with any/all part, terms, and conditions contained in this Memorandum of Agreement.

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IN WITNESS WHEREOF, the parties hereunto have affixed their respective signatures this ____ day of _____ 201_ at Quezon City, Philippines.

COMMISSION ON HIGHER EDUCATION	NATIONAL COMMISSION FOR CULTURE AND THE ARTS	ATENEO DE MANILA UNIVERSITY
By:	By:	By:
PATRICIA B. LICUANAN, Ph.D. Chairperson	RICO S. PABLEO, DR. Executive Director	JOSE RAMON T. VILLARIN, S.J. President

Signed in the presence of:

MARIANNE JOY A. VITAL
Project Director
K to 12 Transition Program
Commission on Higher Education

LARA KATRINA T. MENDOZA
Project Leader

CERTIFIED AS TO AVAILABILITY OF FUNDS

MIRIAM V. MIRANDA
Chief Accountant, AFS
CHIEF ACCOUNTANT, CHED

NCA 2014-12-045105 P 9,999,976.80

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DEC 11 2017
BY:

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REPUBLIC OF THE PHILIPPINES)

City of Quezon City)S. S.

BEFORE ME, a Notary Public, for and in the City of QUEZON CITY, this _____ day of DEC 27 2017, 201_ , personally appeared:

	CTC No. / ID No.	Issued on/Issue at
PATRICIA B. LICUANAN, Ph.D.	CHED ID No.CO-0291	July 20, 2010, Quezon City

RICO S. PABLEO, JR.

Known to me and to me known to be the same person(s) who executed the foregoing instrument and who acknowledged to me that the same is their free and voluntary act and deed, and that of the institutions respectively represented.

The foregoing instrument refers to a Memorandum of Agreement (MOA) consisting of _____ (__) pages, including the page in which this Acknowledgement is written, signed by the parties, including their instrumental witnesses on each and every page thereof and sealed with my notarial seal.

WITNESS MY HAND AND SEAL, on the date and place above written.

NOTARY PUBLIC

Doc No. 29
Page No. 7
Book No. XII
Series of 2017

ATTY. MICHELLE DIANA P. [illegible]WANG
NOTARY PUBLIC FOR [illegible], QUEZON CITY
Until 5 75 Feliz Manalo St., Brgy. Poblacion, [illegible]
ADM MATTER NO. [illegible]
Roll No. [illegible]
IBP No. [illegible]
PTR No. [illegible]
MCLE Compliance No. [illegible]
Commission Expires on [illegible]

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COMMISSION ON HIGHER EDUCATION
NATIONAL COMMISSION FOR CULTURE AND THE ARTS
SALIKHA: CHED-NCCA GRANTS FOR CREATIVE PROJECTS OF THE K TO 12 TRANSITION PROGRAM

Counterpart Funding

PROJECT FINANCIAL PLAN

ETHNOGRAPHIES OF PHILIPPINE AUDITORY POPULAR CULTURES

PARTICULARS	YEAR 1							TOTAL YEAR 1	TOTAL YEAR 2
	Month 1	Month 2	Month 3	Month 4	Month 5	Month 6	Up to Month 12		
I. PERSONNEL SERVICE									
Honoraria									
Project Team Leader (Mendoza)		-	-	-	-	-	-	-	
Team Members		-	-	-	-	-	-	-	
2 members @ 7,500php (Buenconsejo and Enriquez)		-	-	-	-	-	-	-	
5 members @ 6,000php (Cornelio, Devilles, Diaz, Guevarra, and Tan)		-	-	-	-	-	-	-	
1 member @ 4,800php (Cayabyab)		-	-	-	-	-	-	-	
Salaries/Other Professional Services		-	-	-	-	-	-	-	
4 office staff (2 per HEI; additional assignments for existing staff @5k/staff)		-	-	-	-	-	-	-	
Accountant consultant		-	-	-	-	-	-	-	
Auditor (one-time audit/year)							-	-	
Research Assistant (SG 12/ProjectTechnical Staff I @21,387: for UPCMC, UPCM, ADMU SOH, ADMU SOSS)		-	-	-	-	-	-	-	
Subtotal	-	-	-	-	-	-	-	-	
II. Maintenance and Other Operating Expenses (MOOE)									
Transportation (Conference 1x/yr for 9 members + Researcher transportation allowance)									
Conference 1x/yr for 9 members (500 x 2 x 3day conference = 9 members)		-	-	-	-	-	-	-	
Researchers (1K/ mo @ 24 months)		-	-	-	-	-	-	-	
Accommodation (Quarterly Hotel accommodations @ 2k/member)		-	-	-	-	-	-	-	
Food (Allowance for four researchers per month)		-	-	-	-	-	-	-	
Office Supplies (Paper 4 reams/month)		-	-	-	-	-	-	-	
Toner for Printers (1/HEI; a quarterly expenditure)		-	-	-	-	-	-	-	
Printing and photocopying		-	-	-	-	-	-	-	
Licenses, copyrights, and permissions (Breakdown is in Changelogs)								-	
Mailing expenses (courier and snail mail; 2k Year 1, 22k Year 2)								-	
Communications (Monthly Load Allowance for researchers and staff)		-	-	-	-	-	-	-	
Miscellaneous (SIM Cards - One Time)								-	
OTHERS									
Publication Launch Expenses and Documentation (For Year 2, 2019; breakdown in ChangeLogs)							-	-	
Quarterly Representation Meeting (for 9 team members, 8 staff, and accountant = 10 pax)							-	-	
Production Contractual Staff (Per project basis: 4 video projects)									
Director								-	
Executive Producer								-	
Full time video documentary researcher		-	-	-	-	-	-	-	
Camera personnel								-	
Gaffer								-	
Grip								-	
Post Production Contractual Staff (Per project basis: 4 video projects)									
Video Editor								-	
Sound Staff								-	
Colour Staff								-	
Sub-titler								-	
Quantum Post-processing								-	
Conferences (2018 and 2019) --> Counterpart Funding									
Speakers/Performers Honoraria									
Keynote speakers (5)	40,000.00							40,000.00	40
Performers: single artist, band/group (5)	250,000.00							250,000.00	250
Session Speakers (30)	120,000.00							120,000.00	120
Moderators (8)	16,000.00							16,000.00	16
Staff									
Clean-up/janitorial (3)	4,500.00							4,500.00	4

Documentation (2)	3,000.00							3,000.00	
Logistics (2)	3,000.00							3,000.00	
Marketing (3)	4,500.00							4,500.00	
Secretariat (5)	3,000.00							3,000.00	
Technical: Sounds, Lights (3)	4,500.00							4,500.00	
Volunteers (12)	18,000.00							18,000.00	
Meals									
AM snacks (3*100/head)	30,000.00							20,000.00	
PM snacks (2*100/head)	20,000.00							30,000.00	
Lunch (2*150/head)	30,000.00							40,000.00	
Dinner (2*200/head)	40,000.00								
Kit (for 100 participants)								12,000.00	
Bag	12,000.00							5,000.00	
ID lanyard	5,000.00							5,000.00	
Pen and pad set	5,000.00							30,000.00	
Programme	30,000.00							20,000.00	
Shirt	20,000.00							628,500.00	
Subtotal	658,500.00	-	-	-	-	-	-	-	
III. Equipment Outlay (EO)									
External drive: 8 x 2-TB (Toshiba)								-	
External drive: 4 x 4-TB (Seagate)								-	
Broadcast quality camera (Canon EOS C100 Mark II Cinema)								-	
Digital Recorder (Tascam)								-	
Adobe Premier editing software ($239 x 54 pesos/dollar x 2 years)								-	
MacBook Pro (2TB, 512 GB RAM) --> to be housed in UP College of Music								-	
MacBook Peripherals								-	
Desktop PC (1/HEI for office staff use)								-	
PC laptop (for Dr Enriquez and L. Mendoza)								-	
Pocket Wi-fi (2/HEI)								-	
Printer								20,000.00	
(2/HEI)	20,000.00							20,000.00	
Subtotal	-							648,500.00	
TOTAL OTHER OUTLAY COSTS (Admin Cost, Dissemination Activities)									
IV. Administrative Cost									
Maximum of 10% of the total budget requested	-	-	-	-	-	-	-	-	
Subtotal									
V. Dissemination Activities (May be Year 2 for others)									
5% of Total Project Funding	-	-	-	-	-	-	-	-	
Subtotal								648,500.00	
TOTAL ANNUAL COST									
TOTAL PROJECT COST									

Prepared by:

Lara J. Mendoza

LARA KATRINA T. MENDOZA

Lara J. Mendoza

COMMISSION ON HIGHER EDUCATION
NATIONAL COMMISSION FOR CULTURE AND THE ARTS
SALIKHA: CHED-NCCA GRANTS FOR CREATIVE PROJECTS OF THE K TO 12 TRANSITION PROGRAM

ETHNOGRAPHIES OF PHILIPPINE AUDITORY POPULAR CULTURES

PARTICULARS	YEAR 1: Month 1	Month 2	Month 3	Month 4	Month 5	Month 6	Month 7	TOTAL YEA
I. PERSONNEL SERVICE								
Honoraria								
Project Team Leader (Mendoza)	8,800.00	8,800.00	8,800.00	8,800.00	8,800.00	8,800.00	52,800.00	
Team Members	49,800.00	49,800.00	49,800.00	49,800.00	49,800.00	49,800.00	298,800.00	
2 members @ 7,500php (SG 24: Buenconsejo and Enriquez)	15,000.00	15,000.00	15,000.00	15,000.00	15,000.00	15,000.00	90,000.00	
5 members @ 6,000php (SSG 18: Cornelio, Devilles, Diaz, Guevarra, and Tan)	30,000.00	30,000.00	30,000.00	30,000.00	30,000.00	30,000.00	180,000.00	
1 member @ 4,800php (SG 15: Cayabyab)	4,800.00	4,800.00	4,800.00	4,800.00	4,800.00	4,800.00	28,800.00	
Salaries/Other Professional Services								
4 office staff (2 per HEI; additional assignments for existing staff @5k/staff)	20,000.00	20,000.00	20,000.00	20,000.00	20,000.00	20,000.00	76,800.00	
Accountant consultant	2,500.00	2,500.00	2,500.00	2,500.00	2,500.00	2,500.00	15,000.00	
Auditor (one-time audit/year)	20,000.00							
Full time video documentary researcher (SG 12 @ 19,620)	19,620.00	19,620.00	19,620.00	19,620.00	19,620.00	19,620.00	117,720.00	
Research Assistant (SG 12 @21,387: for UPCMC, UPCM, ADMU SOH, ADMU SOSS)	85,548.00	85,548.00	85,548.00	85,548.00	85,548.00	85,548.00	513,288.00	
Subtotal	206,268.00	186,268.00	186,268.00	186,268.00	186,268.00	186,268.00	1,374,408.00	
II. Maintenance and Other Operating Expenses (MOOE)								
Transportation (Conference 1x/yr for 9 members + Researcher transportation allowance)								
Conference 1x/yr for 9 members (500 x 2 x 3day conference x 9 members)	27,000.00							
Researchers (1K/ mo @ 24 months)	4,600.00	4,600.00	4,600.00	4,600.00	4,600.00	4,600.00	27,600.00	
Accommodation (Quarterly Hotel accommodations @ 2k/member)			18,000.00			18,000.00	36,000.00	
Food (Allowance for four researchers per month)	5,000.00	5,000.00	5,000.00	5,000.00	5,000.00	5,000.00	30,000.00	
Office Supplies (Paper 4 reams/month)	1,000.00	1,000.00	1,000.00	1,000.00	1,000.00	1,000.00	6,000.00	
Toner for Printers (1/HEI: a quarterly expenditure)	10,000.00			10,000.00			20,000.00	
Printing and photocopying	4,000.00	4,000.00	4,000.00	4,000.00	4,000.00	4,000.00	24,000.00	
Licenses, copyrights, and permissions (Breakdown is in Changelogs)	100,000.00							
Mailing expenses (courier and snail mail; 2k Year 1, 22k Year 2)	24,000.00							
Communications (Monthly Load Allowance for researchers and staff)	4,500.00	4,500.00	4,500.00	4,500.00	4,500.00	4,500.00	27,000.00	
Miscellaneous	575.00	575.00	575.00	575.00	575.00	575.00	3,450.00	
OTHERS								
Publication Launch Expenses and Documentation (For Year 2, 2019; breakdown in ChangeLogs)	150,000.00							
Quarterly Representation Meeting (for 9 team members, 8 staff, and accountant = 19 pax)			9,500.00			9,500.00	19,000.00	
Production Contractual Staff (Per project basis: 4 video projects)	120,000.00							
Director	120,000.00							
Executive Producer	100,000.00							
Camera personnel	60,000.00							
Gaffer	60,000.00							
Grip								
Post Production Contractual Staff (Per project basis: 4 video projects)	100,000.00							
Video Editor	100,000.00							
Sound Staff	100,000.00							
Colour Staff	68,000.00							
Sub-titler	320,000.00							
Quantum Post-processing								
Conferences (2018 and 2019) --> Counterpart Funding								
Speakers/Performers Honoraria								
Keynote speakers (5)								
Performers single artist, band/group (5)								
Session Speakers (30)								
Moderators (8)								
Staff								

Clean-up/janitorial (3)								-
Documentation (2)								-
Logistics (2)								-
Marketing (3)								-
Secretariat (5)								-
Technical: Sounds, Lights (3)								-
Volunteers (12)								-
Meals								-
AM snacks (3*100/head)								-
PM snacks (2*100/head)								-
Lunch (2*150/head)								-
Dinner (2* 200/head)								-
Kit (for 100 participants)								-
Bag								-
ID lanyard								-
Pen and pad set								-
Programme								-
Shirt								-
Subtotal	1,478,675.00	19,675.00	47,175.00	29,675.00	19,675.00	47,175.00	193,050.00	1,813,100.00
III. Equipment Outlay (ECQ)								-
External drive: 8 x 2-TB (Toshiba)	40,000.00							40,000.00
External drive: 4 x 4-TB (Seagate)	40,000.00							40,000.00
Broadcast quality camera (Canon EOS C100 Mark II Cinema)	145,000.00							145,000.00
Digital Recorder (Tascam)	25,000.00							25,000.00
Adobe Premier editing software ($239 x 54 pesos/dollar x 2 years)	15,600.00							15,600.00
MacBook Pro (2TB, 512 GB RAM) --> to be housed in UP College of Music	102,000.00							102,000.00
MacBook Peripherals	15,000.00							15,000.00
Desktop PC (1/HEI for office staff use)	60,000.00							60,000.00
PC laptop (for Dr Enriquez and L. Mendoza)	103,000.00							103,000.00
Pocket Wi-fi (4/HEI)	4,200.00							4,200.00
Printer (2/HEI)	60,000.00							60,000.00
Subtotal	548,800.00							609,800.00
[illegible]								[illegible]
IV. Administrative Cost								
Maximum of 10% of the total budget requested	-	-	-	-	-	-	-	-
Subtotal								
V. Dissemination Activities (May be Year 2 for others)								
5% of Total Project Funding	-	-	-	-	-	-	-	-
Subtotal								
TOTAL ANNUAL COST								[illegible]
TOTAL PROJECT COST								[illegible]

Prepared by:

Lara J. Mendoza

LARA KATRINA T. MENDOZA

Lara J. Mendoza

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KNOW ALL MEN BY THESE PRESENTS:

This Memorandum of Agreement executed by and between:

The **COMMISSION ON HIGHER EDUCATION**, a government agency, created and organized under Republic Act 7722, with office and postal address in Higher Education Development Center (HEDC) Building, C.P. Garcia Avenue, University of the Philippines Diliman, Quezon City, represented in this Agreement by its Chairperson, **PATRICIA B. LICUANAN, Ph.D.**, hereinafter referred to as the "**CHED**";

- and –

The **NATIONAL COMMISSION FOR CULTURE AND THE ARTS**, a government agency, with principal office address in 633 General Luna Street, Intramuros, Manila, herein represented in this Agreement by its Executive Director, **RICO S. PABLEO, JR.**, hereinafter referred to as "NCCA";

- and –

PARTIDO STATE UNIVERSITY, an educational institution duly organized and existing under Philippine Laws with principal office at San Juan Bautista Street, Goa, Camarines Sur, herein represented by its SUC President III, **RAUL G. BRADECINA**, and hereinafter referred to as the "**GRANTEE**";

WITNESSETH: That,

WHEREAS, the **NCCA** is mandated to coordinate with other government agencies to ensure the widest dissemination of artistic and cultural products among the greatest number of people across the country and overseas for their appreciation and enjoyment;

WHEREAS, the **NCCA**, pursuant to Republic Act 7356, exercises the function of giving grants for the development, protection, preservation and dissemination of Philippine culture and the arts;

WHEREAS, the **CHED**, in line with its mission to strengthen Philippine higher education, is mandated by Republic Act 10533 or the Enhanced Basic Education Act of 2013 to help ensure a smooth transition to the new K to 12 system, particularly with ensuring that the human resource capabilities of higher education institutions (HEIs) are not adversely affected during the transition period;

WHEREAS, the **CHED**, in accordance with this mandate has established the K to 12 Transition Program through Commission En Banc (CEB) Resolution No. 210-2015, to provide opportunities for development for higher education personnel with reduced workloads by offering a series of grants geared for continuing professional

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2016, have formalized a partnership for the delivery of the **"SALIKHA": CHED-NCCA Grants for Creative Projects of the K to 12 Transition Program**, financial endowment for higher education institutions that are affected by the K to 12 Transition Period, who wish to engage in projects relating to the development of Philippine arts and culture for publication, exhibition, production, or other forms of public use;

WHEREAS, the **PARTIDO STATE UNIVERSITY** was identified as a **GRANTEE** of the SALIKHA Grants for Creative Projects, for the merit of the proposed project titled: **"Usipon Suanoy nin Tawong Lipod asin Lihi kan Agta sa Partido (Oral Literature on Supernatural Beings and Beliefs of Aetas in Partido)";**

NOW THEREFORE, for and in consideration of the foregoing premises, the Parties have agreed as follows:

ARTICLE I
RESPONSIBILITIES OF THE PARTIES

A. Joint Responsibilities of CHED and NCCA

The CHED and NCCA shall coordinate and jointly:

1. Agree upon operational and other guidelines for the administration of the Grant;

2. Create an Ad Hoc Committee, composed of technical experts from CHED and NCCA, which will be responsible for vetting accomplishments and outputs, providing technical assistance to grantees, and making recommendations to the CHED CEB-MANCOM;

3. Establish a Monitoring and Evaluation Team, composed of staff from the CHED K to 12 Program Management Unit and NCCA, which will:

    a. Coordinate with the members of the Ad Hoc Screening Committee in the review of accomplishment reports and outputs; and
    b. Monitor the progress of the projects through site visits, and monitor of submission of accomplishment and financial reports and outputs by the Grantees;

4. Ensure compliance with the terms and conditions, and the fulfilment of obligations by HEIs which were awarded the Grant; and

5. Issue a Certificate of Completion to the **GRANTEE** upon completion of the project and clearance of accountabilities.

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The CHED shall:

1. Provide funding assistance to **NCCA** to cover the operational costs of the grant implementation, including but not limited to, administrative costs, costs of project staffing, and monitoring and evaluation costs;

2. Provide funding assistance to the **GRANTEE** in the amount of **Php 999,260.00** ONLY for the implementation of the project titled: *Usipon Suanoy nin Tawong Lipod asin Lihi kan Agta sa Partido (Oral Literature on Supernatural Beings and Beliefs of Aetas in Partido)*, to be released in accordance with the approved Work and Financial Plan (Annex A);

3. Deposit the grant amounts to the bank account of the **GRANTEE**:

   a. The first tranche, together with the Notice to Proceed, shall be released after the approval of the final Full Proposal and Work and Financial Plan (WFP) by the Commission En Banc Management Committee (CEB MANCOM) and the submission of complete documentary requirements (Annex "B") by the **GRANTEE**;

   b. The second and final tranche shall be released after a positive evaluation of the progress of the project according to the Work and Financial Plan, and the completion of the required financial reports including liquidation of the first tranche; and

4. Reserve the right to impose sanctions, for any possible violation of the terms and conditions of the grant by the **GRANTEE**.

C. Responsibilities of NCCA

The NCCA shall:

1. Undertake the Program strictly in accordance with the approved Work and Financial Plan (as attached to the MOA between the CHED and the NCCA);

2. The **NCCA** will submit accomplishment/status reports and annual liquidation reports to CHED. The liquidation report should be certified by the Accountant, approved by the head of the **NCCA**, and verified by the Auditor of the **NCCA**;

3. Shoulder any and all expenses in excess of the approved Project Budget. Excess funds, if any, shall be returned to **CHED**. Such releases shall be subject to the submission of duly audited financial statements and liquidation report as provided under applicable Philippine Government accounting and auditing laws, rules and regulations;

4. Ensure that there is at all times a designated Program Team, with respective Project Staff, to undertake the implementation of the Program and ensure that they will carry out the project strictly;

5. Provide such support services and facilities as may be necessary to fulfill the requirement of the project including but not limited to the Project staff, their salaries/fees/wages, or such other remunerations, office space, facilities and equipment, as required, during the conduct of the project;

6. Receive, review, monitor, and ensure the timely submission of accomplishment reports, financial reports, and outputs of the **GRANTEES**;

7. Lead the coordination with the Ad Hoc Committee for the review of reports and outputs submitted by the **GRANTEES**;

8. Submit copies of status and progress report on each grantee to the designated staff of the CHED K to 12 Program Management Unit; and

9. Remain accountable to the **CHED** for the successful implementation and completion of the project. Failure to satisfactorily complete the program within the period stated in the approved Work and Financial Plan or any extensions granted shall mean forfeiture or discontinuance of the Project. The remaining balance of the fund shall revert automatically to the **CHED** subject to the applicable Philippine government accounting and auditing laws, rules and regulations.

D. Responsibilities of the Grantee

The Grantee shall:

1. Ensure prior submission to the CHED of the approved full Project Proposal, Work and Financial Plan and other documents listed in Annex B of this Memorandum of Agreement. These must be submitted in both soft copy form, and hard copy form along with a cover letter signed by the president or head of the LEAD HEI;

2. Properly utilize the funds provided by the **CHED** and shall see to it that these are used for the purpose for which the same are intended, in accordance with the approved Work and Financial Plan, and subject to usual accounting and auditing rules and regulations;

3. Issue an Official Receipt for every amount received from the **CHED**;

4. Separately keep and maintain any/all necessary accounting ledgers/records and receipts for the project which shall be voluntarily submitted whenever required and subjected to monitoring and evaluation of the CHED Authorized Representative/s and fully furnish the certified true copies of any/all required documents;

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5. Observe the provisions of Republic Act 9184 of the Government Procurement Reform Act' and its Implementing Rules and Regulations in realizing the program, and for the purpose of propriety, transparency and accountability;

6. Adhere to the prescribed accounting entries for booking up property/equipment purchased out of Program funds;

7. Establish a system of remuneration for involved deloaded researchers using the grant amount as a funding source, compliant with the terms for salary and honorarium of CHED Order No. 2, 2011, or the Implementing Guidelines on the Grant of Honoraria for CHED-Funded Programs and Projects;

8. Establish fair and equitable arrangements with other HEIs who will be research co-collaborators regarding the use of funding, set in place with their own Agreements;

9. Ensure that all outcomes of the research project are compliant with the terms of the pertinent University Research Board (URB)/ Institutional Research Committee (IRC) and Ethics committee, to ensure the highest standards of ethics and safety;

10. Submit reports and outputs to the **NCCA**, and annual financial reports and liquidation documents to the **CHED**, as required. The liquidation reports must certified correct by the **GRANTEE**'s Accountant, approved by the head of the institution, and verified by the Auditor of the institution. The full liquidation report shall also be submitted within sixty (60) days after the completion of the project;

11. Comply and coordinate with the **CHED** and the **NCCA** for any monitoring visit or presentation during the duration of the project;

12. Complete and submit all proposed outcomes of the project as indicated in the approved Full Project Proposal and Work and Financial Plan by the end of the project duration specified in the proposal, from commencement of this Agreement, as provided in Article IX;

13. Strictly enforce the terms of the grant, and ensure faithful compliance to the terms of the grant;

14. Present to the CHED and the higher education community, in a panel or a conference, a final report of all accomplished goals and outputs to be scheduled at the end of the term of this project; and

15. Return to the **CHED** any/ all unused balance of the program fund, including any/all income/ interest earned/ generated from the same, within forty-five (45) but not more than sixty (60) calendar days upon pre-termination or completion of the program without need of prior demand.

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ARTICLE II
OWNERSHIP OF PURCHASED EQUIPMENT AND FACILITIES

In the event that the project shall include provision for equipment and facilities, the **CHED** reserves the right of ownership over the purchased equipment and facilities covered by the grant until full liquidation by the **GRANTEE** is completed. The **GRANTEE** shall ensure proper labeling and inventory of the equipment and facilities. Transfer of ownership of the said equipment and facilities in favor of the **GRANTEE** shall ensue upon issuance of Invoice Receipt of property by the **CHED**, or completion of any other required accounting and audit procedure for this purpose. The **GRANTEE** is also required to submit a long-term Sustainability Plan detailing the resources to be used for maintaining the said equipment and facilities.

ARTICLE III
COPYRIGHT AND OWNERSHIP RIGHTS

Ownership and enjoyment thereof arising from this project shall be governed by the applicable provisions of *Republic Act No. 10055 (An Act Providing the Framework and Support System for the Ownership, Management, Use, and Commercialization of Intellectual Property Generated from Research and Development funded by Government and for other purposes), and Republic Act No. 8293 (An Act Prescribing the Intellectual Property Code and Establishing the Intellectual Property Office, Providing for Its Powers and Functions, and for Other Purposes)* including their respective Implementing Rules and Regulations, as well as existing and future policies of the **CHED** and/or the **NCCA** on Intellectual Property Rights such as but not limited to the following:

1. Any public dissemination (i.e. publication, broadcast, performance, exhibition, etc.) arising from the activities undertaken shall clearly establish and identify the **GRANTEE** as the source of the output and the **CHED** as the source of the grant;

2. All reports arising from activities undertaken shall be made in the name of the **GRANTEE**, as source of the output, and the **CHED** as the source of the grant. The names of the principal authors, and/or Team Members, shall be identified, recognized and included in the report;

3. The **CHED** and **NCCA** shall have the right to freely use all outputs for any of the purposes within each agency's legal mandate. The **GRANTEE**, acknowledged as the principal authors, researchers and/or Project Leaders/Research Team Leaders identified, recognized and included in the report, shall provide the **CHED** and **NCCA** written updates on the use of any of the data or information contained in the report and the purposes thereof, to ensure that government-funded researches and projects are utilized, continuously supported, and properly documented for the widest dissemination and use by the general public, and to encourage further studies and researches;

4. The **GRANTEE** shall ensure that the project conducted and its outcome would not violate the intellectual property rights of any third party;

5. Unless otherwise stipulated in an existing agreement between the creators of the

property generated by the project, the ownership of the work will be awarded to the **GRANTEE**;

6. The **CHED** and **NCCA** will possess the first option to publicly disseminate completed outputs without prior approval or permission from the **GRANTEE** within one year from the date of completion of the project. This option may be exercised by either the CHED or the NCCA. The **CHED** and **NCCA** will have the right to produce or authorize to be produced, for staging, telecasting, broadcasting, or cinema or other forms of exhibition from time to time any output of the completed project. The agencies will also be allowed to include the completed outputs in their respective websites; and

7. The entry submitted must not have been submitted to any other grant-giving body or must not have received any grant previously or concurrently. The submitted entry must be new and original work; it may not be a work previously published, exhibited, broadcast, or otherwise featured in public expression. Furthermore, the entry must not be a completed project upon application, but may be a work in progress.

ARTICLE IV
ETHICAL CONDUCT OF RESEARCH

The Grantee has the responsibility of ensuring that the conduct of the research is in accordance with ethical research standards, including but not limited to, compliance with the provisions of *Republic Act No. 8371 (An Act to Recognize, Protect and Promote the Rights of Indigenous Cultural Communities/Indigenous People, Creating a National Commission of Indigenous People, Establishing Implementing Mechanisms, Appropriating Funds Therefore, and for Other Purposes),* and *Republic Act No. 8485 (Animal Welfare Act of 1998).* If deemed necessary by the CHED and/or NCCA, a written endorsement from the University Research Board (URB), Institutional Research Committee (IRC), Office of the University President, or equivalent, validating the project's adherence to ethical research practices, will be required.

ARTICLE V
RESEARCH DEALING WITH INDIGENOUS PEOPLE'S PROPERTIES, RESOURCES, KNOWLEDGE AND/OR HERITAGE

In case the project would utilize any property, knowledge, heritage, culture, tradition, institution and/or any other resource that belong to any indigenous community, the **Grantee** has the responsibility of securing the indigenous community's free prior informed consent and subject itself to the provisions and requirements relative to researchers and research outcomes provided in ***RA 8371 (An Act to Recognize, Protect and Promote the Rights of Indigenous Cultural Communities/Indigenous People, Creating a National Commission of Indigenous People, Establishing Implementing Mechanisms, Appropriating Funds Therefore, and for Other Purposes)*** and its Implementing Rules and Regulations, to protect and respect the community intellectual property rights of the concerned indigenous community.

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In the event of any violation of the provisions of the above, the **CHED** may exercise the option of rescinding the grant, through written notice given to the **GRANTEE** citing the particular violation found, and the **GRANTEE** may be required to return any/all funds subject of this research project.

ARTICLE VI
SANCTIONS

The **CHED** reserves the right to take administrative, civil, and/ or criminal action including, but not limited to, the termination of the Grant, imposition of a repayment obligation for all financial privileges received under the Grant, disqualification from receiving any future grants from the K to 12 Transition Program, or instituting a case before the appropriate body against the **GRANTEE** for any of the following:

1. Refusal or failure of the **GRANTEE** to comply with the policies and guidelines herein stated, and with any provision of the Memorandum of Agreement between the CHED, the NCCA and **GRANTEE**;

2. Corruption, misrepresentation or fraud by the **GRANTEE** and/or any of its personnel serving as project lead/ team members;

3. Failure to submit the required accomplishment reports and/or financial reports according to the schedule given by the **CHED** and the **NCCA**;

4. Failure to timely complete the project under the Grant, including the implementation of the plan, within the approved duration;

5. Use of funds for purposes other than those indicated in the approved project proposal and Work and Financial Plan; and

6. Other acts as may be considered by the **CHED** and **NCCA** as inimical to the Republic of the Philippines and those that adversely affect the integrity of the Grant.

ARTICLE VII
TERMINATION

The **CHED** has the right to terminate the grant under any of the following circumstances:

1. Unjustified failure of the **GRANTEE** to implement the grant in accordance with terms and conditions;

2. Grossly unsatisfactory quality of the work-in-progress, as deemed by the **CHED** and the **NCCA**;

3. Breach or violation of contract by the **GRANTEE**;

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4. Misuse of grant funds;

5. Justifiable grounds which prove the inability of the **GRANTEE** to complete the grant (e.g. poor health of the team lead/ project proponent, natural calamities);

6. Non-availability or exhaustion of funds; and

7. Such other acts as may be considered by the **CHED** and the **NCCA** as inimical to the interest of the government of the Republic of the Philippines and those that adversely affect the integrity of the **CHED** and the **NCCA**.

ARTICLE VIII
NON-WAIVER

The failure of **CHED** to insist upon the strict performance of any terms, conditions and covenants hereof shall not be deemed a relinquishment of waiver of any subsequent breach or default of such terms and conditions and covenants.

ARTICLE IX
EFFECTIVITY OF THE AGREEMENT

This Agreement shall take effect upon the release of funds to the **GRANTEE** for the project implementation and shall be in effect for the period indicated in the final proposal from the date of the receipt of the funds by the **GRANTEE**, unless further extension is requested in writing not later than sixty (60) days prior to the expiration of the contract period. The said extension should be for a valid cause and approved by the **CHED** in writing prior to the expiration of the original contract period. The request for extension does not entitle the **GRANTEE** to additional funds and any additional expense that may be incurred as a result of the extension shall be in the account of the **GRANTEE**. After a first extension is granted, no further extensions shall be allowed by the **CHED**.

ARTICLE X
LITIGATION AND VENUE

In the event judicial relief against any party is filed by CHED before the regular courts, for the enforcement of the terms and conditions in the Agreement, the parties agree that the venue of court action shall be exclusively in the proper courts of Quezon City.

ARTICLE XI
ATTORNEY'S FEES

In the event of any suit against the **CHED** for the enforcement of any stipulation of this Agreement or right under this Agreement is found baseless or inappropriate, the **GRANTEE** shall pay **CHED** attorney's fees which shall not be less than Fifty Thousand Philippine Pesos (Php 50,000.00), in addition to the other damages, expenses, costs of

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ARTICLE XII
EXECUTION IN COUNTERPARTS

This document constitutes the complete agreement between the parties herein and any subsequent supplements/additions hereto, as long as duly agreed upon and intended so by the parties shall form an integral part of this Agreement.

ARTICLE XIII
SEPARABILITY CLAUSE

In the event that one or more provisions contained herein shall be held invalid, illegal or unenforceable in any respect and for any reason, the remaining provisions shall remain valid, legal and enforceable.

ARTICLE XIV
DOCUMENTS COMPRISING THIS AGREEMENT

All annexes hereto attached are hereby expressly made an integral part of this agreement by reference, excluding inconsistencies with any/all part, terms, and conditions contained in this Memorandum of Agreement.

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IN WITNESS WHEREOF, the parties hereunto have affixed their signatures this ____ day of _____ 201_ at Quezon City, Philippines.

COMMISSION ON HIGHER EDUCATION	NATIONAL COMMISSION FOR CULTURE AND THE ARTS	PARTIDO STATE UNIVERSITY
By:	By:	By:
PATRICIA B. LICUANAN, Ph.D. Chairperson	RICO S. PABLEO, JR. Executive Director	RAUL G. BRADECINA, Ph.D. SUC President III

Signed in the presence of:

MARIANNE JOY A. VITAL Project Director K to 12 Transition Program Commission on Higher Education	JOSENIA PENINO Project Leader

CERTIFIED AS TO AVAILABILITY OF FUNDS

MIRIAM V. MIRANDA
Chief Accountant, AFS
CHIEF ACCOUNTANT, CHED

DBM # 2017-12-04723, P999,000

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REPUBLIC OF THE PHILIPPINES)
City of Quezon City)S. S.

BEFORE ME, a Notary Public, for and in the City of QUEZON CITY, this _____ day of DEC 27 2017, 201_ , personally appeared:

	CTC No. / ID No.	Issued on/Issue at
PATRICIA B. LICUANAN, Ph.D.	CHED ID No.CO-0291	July 20, 2010, Quezon City
RICO S. PABLEO, JR.		
RAUL G. BRADECINA, Ph.D.	Passport ID: EC6518877	January 19, 2016 DFA Legazpi

Known to me and to me known to be the same person(s) who executed the foregoing instrument and who acknowledged to me that the same is their free and voluntary act and deed, and that of the institutions respectively represented.

The foregoing instrument refers to a Memorandum of Agreement (MOA) consisting of _____ (_) pages, including the page in which this Acknowledgement is written, signed by the parties, including their instrumental witnesses on each and every page thereof and sealed with my notarial seal.

WITNESS MY HAND AND SEAL, on the date and place above written.

NOTARY PUBLIC

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Book No. XII
Series of 2017

ATTY. MICHELLE D. NAVAL P. MANIWANG
NOTARY PUBLIC FOR AND IN QUEZON CITY
Stall B-75 Feliz Marabe St., Brgy. Poblacion, Cubao, Q.C.
ADM. MATTER NO. NP-183 (2016-2017)
Roll of Attorney No. 61035
IBP No. [illegible] 01-03-17/Quezon City
PTR No. [illegible] 01-03-2017/Quezon City
MCLE Compliance No. V-0012423/12-10-2015
My Commission Expires on December 31, 2017

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TALAAN NIN KASUNDUAN
MEMORANDUM OF AGREEMENT

An kasunduan na ini sa paagi asin guinibo kan:

This agreement is entered into and executed by and among:

Mga KATUTUBONG AGTA o KATUTUBONG KUMUNIDAD NIN MGA AGTA kan GOA, SAGÑAY ASIN TIGAON, "PARTIDO", CAMARINES SUR na may kada representante na si:

The **AGTA INDIGENOUS PEOPLES/INDIGENOUS CULTURAL COMMUNITIES of GOA, SAGÑAY AND TIGAON, "PARTIDO", CAMARINES SUR**, respectively represented by:

***OSCAR B. SANGLAY**, sa tamang edad, Filipino, may agom asin nag-eerok sa Digdigon, Goa, Camarines Sur;*

OSCAR B. SANGLAY, of legal age, Filipino, married and with residence and postal address at Digdigon, Goa, Camarines Sur;

***ERLINA A. BANZALES-BUENVIAJE**, sa tamang edad, Filipino, may agom asin nag-eerok sa Catalotoan, Sagñay, Camarines Sur;*

ERLINA A. BANZALES-BUENVIAJE, of legal age, Filipino, married and with residence and postal address at Catalotoan, Sagñay, Camarines Sur;

REBECCA S. PURISIMA, sa tamang edad, Filipino, may agom asin nag-eerok sa Zone 7, Tinawagan, Tigaon, Camarines Sur;

REBECCA S. PURISIMA, of legal age, Filipino, married and with residence and postal address at Zone 7, Tinawagan, Tigaon, Camarines Sur;

*na digdi inaapod na **"MGA AGTA KAN PARTIDO"**;*

and herein referred to as the **"AGTA INDIGENOUS PEOPLES OF PARTIDO"**;

***PARTIDO STATE UNIVERSITY (PSU)**, ginibo asin naghihiro susog sa Republika Akta Numerado 9029 na digdi nirere-presentar kan presidente kaini na si **RAUL G. BRADECINA**, sa tamang edad, Filipino, may agom asin nag-ocpisina sa adres na San Juan Bautista St., Goa, Camarines Sur na digdi inaapod na "**PSU**";*

The **PARTIDO STATE UNIVERSITY(PSU)**, created and operating in accordance with Republic Act No. 9029, herein represented by its president, **RAUL G. BRADECINA**, of legal age, Filipino, married and with office address at San Juan Bautista St., Goa, Camarines Sur, and hereinafter referred to as the "**PSU**"

- asin -
- and-

***NATIONAL COMMISSION ON INDIGENOUS PEOPLES, OPISINANG PANGREHIYON NUMERADO 5**, sarong ahensya nin gobyerno na ginibo asin naghihiro susog sa Republika Akta 8371, na digdi nirere-presentar ni **LEE T. ARROYO** bilang director kaini asin digdi inaapod na"**NCIP-5**".*

The **NATIONAL COMMISSION ON INDIGENOUS PEOPLE REGIONAL OFFICE NO. V**, a government agency created and operating in accordance with Republic Act 8371, herein represented by **LEE T. ARROYO** in her capacity as Regional Director, herein referred to as the **"NCIP-V"**;

SAKSIHAN NA:
WITNESSETH THAT:

ARTIKOLO 1. MGA BASEHAN
ARTICLE I- PREMISES

NIN HULI TA*, an PSU sa paagi ni JOSENIA M. PENINO, naghahagad na ma-isyuhan nin paenot na kaipuhan na sertipiko kan opisina kan NCIP-5 manunungod sa pag-aadal asin dokumentasyon kan unibersidad kan mga "Katutubong Kaaraman, Sistema asin Gawi-gawi" kan mga KatutubongTawo sa Goa, Sagñay asin Tigaon, "Partido", Camarines Sur na may titulong "**Usipon Suanoy nin Tawong Lipod asin Lihi kan Agta sa Partido**";*

WHEREAS, PSU, through *JOSENIA M. PENINO*, has filed an application for issuance of certificate precondition before the NCIP-V Regional Office concerning the University's research and documentation involving Indigenous Knowledge Systems and Practices (IKSP) of the Indigenous Peoples of Goa, Sagñay and Tigaon, "Partido", Camarines Sur entitled "***Usipon Suanoy Nin Tawong Lipod asin Lihi Kan Agta sa Partido***";

NIN HULI TA*, susog sa mga probisyunes kan Administratibong Kasuguan kan NCIP bilang 1, serye nin 2012 o an "Mga Guiya sa Pag-adal asin Pag dokumento kan mga "Katutubong Kaaraman, Sistema asin Gawi-gawi", an polisiya kan Estado iyo na an proseso sa pagkua kan Malaya, Paenot asin May Pagkaarem na Pag-uyon kan magkakanigong Katutubong Kultural na Kumunidad/Katutubong Tawo guibohon na masigurong tunay asin magarantiya na magamit ninda an diretso nindang mag-uyon o mag habo, sa paagi nin Malaya, Paenot asin May Pagkaaram na Pag-uyon, sa pag-adal asin pag dokumento kan saindang mga "Katutubong Kaaraman, Sistema asin Gawi-gawi" asin "Kustumbreng Leyes";*

WHEREAS, pursuant to the provisions of the Indigenous Knowledge Systems and Practices (IKSPs) and Customary Laws (CL) Research and Documentation Guidelines of 2012 or the NCIP Administrative Order No. 1, series of 2012, it is a state policy that the process of securing the Free Prior and Informed Consent (FPIC) of the concerned Indigenous Cultural Communities/Indigenous Peoples be done with utmost regard to ensure and guarantee the due exercise by the concerned ICCs/IPs of their right to allow or reject, through FPIC, research and documentation of their IKSPs and Customary Laws.

NIN HULI TA*, bilang parte kan proseso sa pagkua nin Free Prior Informed Consent kan apektadong ICCs/IPs asin kun an pag-uyon sa mga ipinapanugang proyekto naitao na an kinakaipuhan na MOA kun sain mahihiling an termino asin kundisyones kan pag-implementar kan proyekto sagkud kan mga benepisyo para sa apektadong ICCs/IPs, maninigong maipatupad kan mga nag-aadal asin kan mga apektadong ICCs/IPs asin kan ikatulong partido.*

WHEREAS, as part of the process of securing the Free Prior And Informed Consent of affected ICCs/IPs and whenever consent to the proposed project is given, the requisite Memorandum of Agreement (MOA) containing the terms and conditions for the implementation of the project as well as the benefits for the affected ICCs/IPs has to be executed by and between the project

proponent, affected ICC/IP community, and a third party.

***KAYA NGUNYAN**, para sa asin sa pagkunsidera kan mga nasambit asin mga napagkasunduan na, an Mga Agta Kan Partido asin PSU kaibanan an NCIP-V nagka-uyon sa mga minasunod:*

NOW, THEREFORE, for and in consideration of the foregoing premises and mutual covenants, the AGTA INDIGENOUS PEOPLES OF PARTIDO and PSU together with NCIP-V hereby agree as follows:

ARTIKULO 2 – TITULO ASIN MGA SAKOP

ARTICLE II- TITLE AND COVERAGE

***TITULO ASIN SAKOP.** An kasunduan na ini manunungod sana, mayong iba sa implementasyon kan proyektong pag-aadal na may titulong, **"Usipon Suanoy Nin Tawong Lipod asin Lihi Kan Agta sa Partido"** sa ICCs/IPs kan mga Municipio kan Goa, Sagñay asin Tigaon, Camarines Sur.*

TITLE AND COVERAGE. This agreement shall relate exclusively to the implementation of the research project entitled, ***"Usipon Suanoy Nin Tawong Lipod asin Lihi Kan Agta sa Partido"*** in the ICCs/IPs of the Municipalities of Goa, Sagñay and Tigaon, Camarines Sur.

*An mga detalye kan pag-aadal gabos ipinaaram asin inispleka sa mga ICCs/IPs. Pig-orolayan man gabos an mga ini asin gabos na mga kahapotan sinimbag. Kaya an kada ICCs/IPs nagpahayag kan saindang pag-uyon sa proyekto sa paagi nin resolusyon nin pag-uyon na nakatakod sa kasunduan na ini bilang **Annex "A"**, **Annex "B"**, & **Annex "C"**.*

The details of the research project were fully disclosed and explained to the concerned ICCs/IPs. They were likewise fully discussed and all questions were answered. Consequently, the respective ICCs/IPs expressed their consent to the project through a resolution of consent which are attached to this agreement as **Annex "A"**, **Annex "B"**, & **Annex "C"**.

ARTIKULO 3 – MGA RESPONSIBILIDAD KAN MGA PARTIDO

ARTICLE III- RESPONSIBILITIES OF THE PARTIES

A. NAG-AADAL:

A. RESEARCHERS:

1. *Guibohon an pag-adal susog sa mga limitasyon asin kondisyones na nasambit sa Artikulo 5 digdi.*

Conduct the research in accordance with the limitations and conditions set forth in Article V hereof.

2. *I-respeto an katutubong mga kultura, kustombre, tradisyon asin gawi-gawi kan mga Katutubong Kultural na Kumunidad.*

Respect indigenous cultures, customs, traditions and practices of the ICCs.

3. Mantenirun an magayun na relasyong-pangtrabaho sa mga pag-iriba sa ICCs sagkod NCIP.

Maintain a good working relation with the ICCs and the NCIP.

B. ICCs/ IPs

1. *Magpartesipar asin magkooperar sa mga aktibidad kan pag-aadal;*

Participate and cooperate in the activities of the research;

2. *Magtao nin tama asin totoo na mga kasimbagan sa mga kahapotan o sa mga hinahagad na inpormasyon;*

Give correct and true answers to all questions asked or information being sought;

3. Magtabang para masiguro *an kaligtasan kan mga maadal habang yaon sa saindang mga kumunidad;*

Help ensure the safety of the researchers while in their communities;

C. NCIP

1. Magtao nin asistensiya sa mga partisipantes kan ICCs/IPs sa pagdokumento kan pag-aadal.

To assist the ICCs/IPs in the documentation of the research.

2. Mabantayan an mga ICC asin mga nag-aadal sa pagpaplano hanggang sa pagtatapos kan proyekto.

To monitor the ICC and the Researchers from the inception to the conclusion of the project.

3. Masiguro na ang NCIP asin ICCs natawan nin kopya kan balidong resulta kan pag-aadal.

To ensure that the NCIP and the ICCs are duly furnished with the copy of the validated result of research.

4. Mamantenir an maray na relasyon kairiba an mga nag-aadal asin ICCs.

Maintain a good working relation with the Researchers and the ICCs.

ARTIKULO 4 – PAG HUSAY KAN MGA DAE PAGKAIRINTINDIHAN ASIN KAPADUSAHAN SA PAGBALGAR KAN UROLAY

ARTICLE IV. DISPUTE RESOLUTION AND SANCTIONS

An pag husay kan mga dae pagkairintidihan asin kapadusahan sa pagbalgar kan urolay iyo an mga nasambit sigun sa "Indigenous Knowledge System and Practices (IKSPs) and Customary Laws (CLs) Research and Documentation Guidelines of 2012".

Dispute resolution mechanisms and sanctions for non- compliance to the Agreement are those described in the "Indigenous Knowledge Systems and Practices (IKSPs) and Customary Laws (CLs) Research and Documentation Guidelines of 2012."

"Indigenous Knowledge Systems and Practices (IKSPs) and Customary Laws (CLs) Research and Documentation Guidelines of2012.

ARTIKULO 5. MGA LIMITASYON ASIN KONDISYONES

ARTICLE V- LIMITATIONS AND CONDITIONS

An produkto kan pag-aadal na ini dapat sanang gamiton sa pang-akademikong katuyuhan, siring pero dai nagtatapos sa paggamit bilang materyal sa pagtukdo asin eksibit na pang museyo.

The research output shall be used for academic purposes only, such as but not limited to it being used as instructional material and as exhibit in museums.

Kun maninigo man na an produkto kan pag-aadal gagamiton sa katuyuhang pang-komersiyo bilang resulta kan pag publikar kan siring, magin sa lokal o internasyunal; o gamitun sa turismong katuyuhan asin sa iba pang mga gamit na may katuyuhang makaguno nin kuwarta, suhay na FPIC an kinakaipuhan kan nasabing magamit. Sa katuyuhan na ini, an PSU magarantiya kan maninigong mga iakdang para masiguro na, a pwera kan iba, an produkto kan pag-aadal matao nin pagpagirumdom na ini gagamiton sa pangkomersiyal na katuyuhan o pang pinansiyal na benepisyo na nangangaipo nin suhay na FPIC.

Should the research output be used for commercial purpose as a result of its publication, whether local or international, or use for tourism purposes and any other uses with the aim in view of having monetary benefit, a separate FPIC shall be secured by its user. For this purpose, the PSU shall guarantee that necessary measures to ensure that, among others, the research output shall contain the caveat that its use for commercial purposes or monetary benefit is subject to separate FPIC.

An kada sarong IP na imbwelto sa pagtao nin kasimbagan sa pag-aadal na ini dapat na irekognisar sa resulta.

The individual IPs who are made as respondents of the research shall be acknowledged in the research output.

Mayong pag-aadal an ikokonducir sa tuktok kan Mt. Isarog.

No research shall be conducted at the peak of Mount Isarog.

PANGKAT VI- MGA BENEPISYO
ARTICLE VI- BENEFITS

An pag-adal na ini makakatabang sa pag preserbar asin pagtulod kan kultura sa paagi kan pagdokumento kan mga usipon suanoy asin lihi kan Agta sa Partido asin pagpayaman kan kaaraman kan mga jovenes;

The research will help conserve and promote the culture of IP community through documentation of Usipon Suanoy asin Lihi kan Agta sa Partido and increase awareness of the youth on culture.

An pag-aadal na ini makakatabang sa pagtulod kan kulturang pang turismo sa Partido;

The research may help promote or instigate culture-based tourism in Partido;

An produkto kan research na ini na mga dinukomentong "Usipons" maninigong gamiton sa pagpapayaman kan kalidad kan pagtukdo asin pagkanuod kan mga kaakian sa paagi kan pagproducir kan mga materyal sa pagtukdo;

The documented "Usipons" may be used to enrich the instruction and quality of learning through production of instructional material;

An gabos na imbwellong ICC kan barangay magkakanigong taanan nin kopya kan resulta kan pag-aadal;

All concerned ICC of barangay shall be furnished copy of the research output;

The PSU shall hire qualified members of the ICC concerned who shall serve as transcriber or graphics artist;

PANGKAT VII- BISA, PANAHON ASIN PAGBABAGO
ARTICLE VII- EFFECTIVITY, DURATION AND AMMENDMENTS

This Memorandum of Agreement shall take effect upon its signing and the receipt of the researcher of the Certification Precondition and shall remain enforced for a duration of _____.

An mga nag-oorolay didgi, kun magkaoroyon, puwedeng bagohon an mga napagkasunduan digdi o dagdagan an panahon kan pag-aadal;

The parties, may upon mutual consent, amend or modify this agreement or extend its duration.

***BILANG PATOTOO**, kami nagpirma sa kasuratan na ini ngunyan na ika-___ kan Bulan na Hunyo, 2018 digdi sa _____.*

IN WITHNESS WHEREOF, we have hereunto affixed our signatures this AUG 3 0 2018 day of June 2018 at Goa, Cam. Sur.)

AGTA INDIGENOUS PEOPLES/INDIGENOUS CULTURAL COMMUNITIES OF GOA, SAGÑAY, & TIGAON, "PARTIDO" CAMARINES SUR

By:

OSCAR B. SANGLAY

ERLINA A. BANZALES-BUENVIAJE

REBECCA S. PURISIMA

PARTIDO STATE UNIVERSITY (PSU)

By:

RAUL G. BRADECINA
President

NATIONAL COMMISSION ON INDIGENOUS PEOPLES-V

By:

LEE T. ARROYO
Regional Director

Signed in the Presence of:

JOSEFINA LOPEZ

RENATO B. BATIAN

ACKNOWLEDGEMENT

BEFORE ME, this __ day of June 2018, in Goa, Camarines Sur, Philippines, personally appeared:

OSCAR B. SANGLAY	TIN CARD 296-429-029-000
ERLINA B.BUENVIAJE	COMELEC CARD 1731-0027A-B0654EBB20000
REBECCA S. PURISIMA	TIN CARD 424-587-619-000
RAUL G. BRADECINA	Passport ID No. EC6518877
LEE T. ARROYO	NCIP-V Employee ID No. 1

executed the foregoing Memoradum of Agreement, and acknowledged that the same is their free and voluntary act and deed.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my notarial seal, on the day, year and place above written.

NOTARY PUBLIC UNTIL DEC. 31ST 2018
PTR NO. 9818925 01/03/17 SAN JOSE,
IBP NO. 1060203 01/03/17 CAM. SUR CHAPTER
ATTORNEY'S ROLL NO. 17631
MCLE V-0005097

Doc. No. 094
Page No. 019
Book No. 034
Series of 2018.

Republic of the Philippines
PARTIDO STATE UNIVERSITY
Goa, Camarines Sur

PROGRAM OF RECEIPTS AND EXPENDITURES
SALIKHA RESEARCH PROJECT

OBJECT OF EXPENDITURES	BUDGET
RECEIPTS - 1st Tranche - 80% - P 799,408.00	**799,408.00**
Balance - 20 % - 199,852.00	
Total **P 999,260.00**	
EXPENDITURES	
Personnel Services	
Honoraria - IP Technical Panel Members	145,000.00
Honoraria - IP Agtas	25,500.00
Total Personnel Services	**170,500.00**
Maintenance and Other Operating Expenses	
Travel Expenses	50,000.00
Supplies and Materials	90,000.00
Communication Expenses	4,200.00
Other Professional Services	
Graphics Illustrator	15,000.00
Transcriptionist	12,500.00
Admin Aide	90,000.00
Representation Expenses (Accomodation and Foods)	215,208.00
Rent Expenses	15,000.00
Total Maintenance and Other Operating Expenses	**491,908.00**
Capital Outlay	
IT Equipment and Software	
Laptop, Core i5 processor with licensed MS Office Applications	50,000.00
Other Property, Plant and Equipment	
Digital SLR Camera	75,000.00
Digital Audio Recorder	12,000.00
Total Capital Outlay	**137,000.00**
Total Estimated Expenditures	**799,408.00**

Prepared by:

JOSENIA M. PENINO
Core Team Leader

Noted:

LUISA M. LANCISO
Research Director

Reviewed by:

PATRICIA M. CANDELARIA
VP for Research, Extension and External Affairs

Certified Funds Avaliable : Trust Fund

AMALIA O. OCAMPO
Adm. Officer V - Budget

Approved:

RAUL G. BRADECINA, Ph. D.
SUC President III

SALIKHA FULL PROPOSAL

Project Title	Usipon Suanoy nin Tawong Lipod asin Lihi kan Agta sa Partido *(Oral Literature on Supernatural Beings and Beliefs of Aetas in Partido)*
Grant Category	See table below
Lead HEI	Partido State University
Collaborating HEI	*None*
Project Team Lead	*Josenia M. Penino*

Category	Amount	Minimum Eligibility Requirements for Lead HEIs	Preferred Project Type
Hinilawod	Php 500,000 – Php 1,000,000	• CHED-recognized • Non-stock, non-profit, if private HEI	Discipline-specific, single institution
Darangen	Over Php 1,000,000 – Php 5,000,000	• CHED-recognized • Non-stock, non-profit, if private HEI • COD for at least one discipline relevant to the project • At least Level II HEI Accreditation	Multi-disciplinary, single institution
Hudhud	Over Php 5,000,000 – Php 10,000,000	• CHED-recognized • Non-stock, non-profit, if private HEI • Autonomous or Deregulated • COE for at least one discipline relevant to the project • At least Level III HEI Accreditation • Has a functioning URB/IRC	Multi-disciplinary, multiple institutions

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I. Project Overview

BACKGROUND

Oral traditions and expressions domain takes account of an "enormous variety of spoken forms including proverbs, riddles, tales, nursery rhymes, legends, myths, epic songs and poems, charms, prayers, chants, songs, and dramatic performances and more" (UNESCO, 2003).

The Philippines is characterized by geographically diverse regions with locally specific oral traditions and expressions that are considered "...ephemeral and fragile" (Margate, 2015). Oral traditions and expressions are most likely threatened by multiple factors such as mass media, urbanization, environmental change globalization, modernization, industrialization, environmental change, technology, migration, cultural homogenisation, and lack of support, appreciation and understanding (Margate, 2015; Arai, 2004; Choe, 2004; UNESCO, 2003). Failure to transmit the oral tradition to future generation leads most likely to its vanishing, leaving a gap in history where national history is founded upon.

Bikol Region is rich in intangible cultural heritage, most of which are oral traditions and expressions (Nieva, 2012; Conde, 2015; Conde et al, 2014; Margate, 2014; Barbasa, 2010; Conde, 2005; Dery, 1992). *Usipon* as a Bikol oral tradition mirrors many aspects of Bikol culture particularly those that have roots from ethnic community.

The region is comprised of six provinces on the southeastern end of Luzon. These provinces include Camarines Sur, Camarines Norte, Masbate, Albay, Sorsogon and Catanduanes. In some of these provinces inhabit an estimated total of 48,743 Aetas or locally known as *Agtas* [1](NCIP, 2016) who are culturally rich in *usipon*. There are five (5) tribes with distinct culture that reside in the region, namely: Agta Kabihug/Abian, Itom, Tabangnon, Cimmaron, and Tabangno. They are scattered throughout the provinces of Camarines Sur, Camarines Norte, Albay, and Sorsogon. A total of 26, 199 Agtas live in Camarines Sur (NCIP, 2016), where Partido is situated.

Partido is home to 6,169 Agtas (NCIP, 2016) whose town settlements lie at the foot hills of Mt. Isarog. These towns are Sagnay, Tigaon and Goa. (See Table 2).

Table 1. Distribution of Agtas in Partido

AREAS	POPULATION
Sagnay	**3729**
Atulayan	377
Minadongjol	346
Aniog	213
Cabunturan	246
Kilantaao	308
Catalotoan	528
Turague	170
Odiongan	182
Quilomaon	177
Cagbalogo	320
Patitinan	538
Nato	324
Tigaon	**1089**
Tinawagan	314
Gaao	245
Cabalinadan	55
Libod	167
Consocep	97
Coyaoyao	211
Goa	**1,351**
Abucayan	222
Pinaglabanan	202
Payatan	102
Digdigon	58
Hiwacloy	198
San Pedro-Aroro	156
Salog	413
TOTAL	6,169

SOURCE: NCIP Region V, as of April 2016

[1]*Tribal Filipinos described as characteristically short, dark-skinned, kinky-haired, thick-lipped, and small-nosed (Headland, 2005; Rashidi, 2000). There are a total of 48, 743 Agtas registered in the Bikol region (NCIP, 2016).*

Geographically isolated from the areas of major thoroughfares, *usipon*[2] and *lihi*[3] on *tawong lipod*[4] thrive among the indigenous peoples in the area forming part of their culture.

Many definitions point out that culture are values and beliefs. Other experts define culture as everyday life and behaviours of people that flow from these beliefs. According to World Commission on Culture and Development, culture is defined as "ways of living together" and "core element of sustainable development."

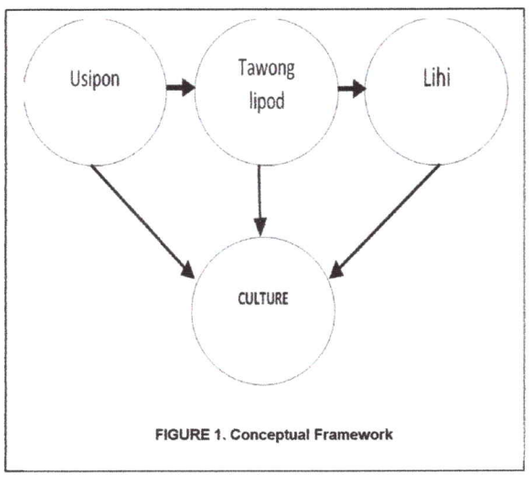

FIGURE 1. Conceptual Framework

This study posits the relationship among *usipon, tawong lipod, and lihi* in the context of Partido Agta culture. *Usipon* of Agta contains supernatural beings such as *engkanto, luuk, dwende, kapre, liktin* and the likes. These supernatural beings are referred to in general as *tawong lipod* in many oral history and indigenous communities in Partido. No study has yet been done on *tawong lipod* in the context of oral history of Partido Agta. The characteristics of these *tawong lipod* that are embedded in *usipon* also contribute to the development of indigenous beliefs or *lihi* of Agtas in the area (See Figure 1).

The "interdependence of all things" and "respecting interspecies equity" as ethics for sustainable development as identified by World Conservation Union (IUCN), the Worldwide Fund for Nature (WWF) and the United Nations Environment Program (UNEP) (UNESCO, 2003) provide the rationale for this study. This study intends to generate information on oral history, the supernatural characters embedded in these oral literature and how they shape the beliefs that become part of the Bikol culture taken from the account of the Agta indigenous communities of Partido in order to sustain and deepen understanding of these intangible heritage for their promotion.

Statement of the problem:

This project intends to explore the *usipon, the tawong lipod* and the various *lihi arising from them manifested in the accounts of Partido* Agta. It seeks to answer the following questions:

1. What are the *Usipon* of Agtas in Partido?
2. Who are the characters or *tawong lipod* depicted in the *Usipon*?
3. What are the personal experiences of the resource persons on *tawong Lipod?*
4. What are the distinguishing characteristics of the tawong lipod *from Aeta Partido lens*?
5. What are the various *lihi* of Agta related to *tawong lipod*?

[2]A local term used in Partido for oral narratives
[3]A local term used in Partido for beliefs
[4]A local term used in Partido for supernatural beings

Significance of the proposed project:

This project encompasses regional, national, sectoral and institutional agenda as it supports thrusts of government on cultural preservation, environmental conservation, tourism and sustainable community.

Preservation of indigenous knowledge and culture of Partido Agta will contribute in achieving cultural diversity and sustainable community in a global village.

Documentation of *suanoy usipon, lihi* and graphical illustration of *usipon* characters will be a relevant material to depict the culture of Agta in Partido forming part of the Partido tourism and its promotion.

Understanding the interrelationship of the indigenous people with the nature can serve as a basis for environmental education.

The indigenous knowledge and outputs produced in this project can serve as a better material to enrich teaching and learning experiences through contextualized education exploiting local indigenous cultural intangible heritage, thereby leading to increased visibility of and awareness on Indigenous Peoples culture in Partido community.

II. Objectives

This project intends to achieve the following objectives:

1. Make an inventory of the *usipon suanoy* as part of the orally transmitted culture of the *Agtas* in Partido,
2. identify the characters or *tawong lipod* depicted in the *usipon*
3. document the personal experiences of the resource persons on the *tawong lipod; and*
4. describe graphically the distinguishing characteristics of *tawong lipod* from Agta Partido lens; and
5. document the beliefs of *Agta* relative to the various *usipon suanoy and tawong lipod,*

The attainment of these objectives will produce a written documentation that will serve as valuable materials leading to the preservation of indigenous knowledge and culture of the Partido Agta.

The generated knowledge will be an added contribution to the banked information on inventoried and documented oral traditions in Philippine arts and culture, which can be of use to deepen understanding of the identity of the indigenous peoples and the Partido community as a whole.

The compilation of *usipon* can be a relevant resource material for educators to enrich contextualized instruction in higher education and to promote cultural sensitivity and cultural awareness among indigenous peoples and other residents in Partido.

In its entirety, the output can be a lens for indigenous people to protect and preserve their own oral tradition that manifest against possible threats.

III. Strategy and Methodology

This study will utilize an ethnographic research design, combining participant observation, interviews, field notes and Focus Group Discussion (FGD). Interviews and FGD will be conducted to 50 resource persons from twenty five (25) *Agta* settlements (see Table 1 on page 3) in three (3) municipalities. They will be selected from the senior tribe members and will be identified in coordination with the National Commission for Indigenous Peoples (NCIP).

This study will also include three (3) *Agtas* as members of the research team (each representing each municipality), that will serve as a guide and coordinator, and a native graphics artist (as suggested by the panel) if available. The team will be immersed in the communities in summer of 2018 to observe the interrelation between *usipon, tawong lipod and lihi.*

To carry out the objectives of this project, the following strategies and methods will be employed:

Objective 1: To inventory and document the *usipon* (first set of narrative), resource persons will be asked of the information on the *usipon* which will be recorded using a voice tape recorder. Generated information will be confirmed by other members of the Agta community in a community focus group discussion.

Objective 2: The information captured from the taped *usipon* will be transcribed and subjected for evaluation. All cited *tawong lipod* characters and their characteristics arising from the transcript will be noted down. A follow-up key informant interview using *Agta* respondents will be done to document and record the characteristics of the identified supernatural beings. This will include the physical description of the *tawong lipod* characters, their values, their supernatural powers and other qualities depicted in the narratives.

Objective 3: Resource persons will be asked of stories on their personal encounter with the *tawong lipod* characters. This will form the other set of narratives apart from the *usipon.* Testimonies will be recorded and transcribed. Then, they will be asked to describe the distinguishing features of the tawong lipod characters.

Objective 4: The descriptions as depicted in the testimonies will be used to graphically illustrate the physical appearance and other distinguishing characteristics of each *tawong lipod* characters. An *Agta* resource person will be requested to vividly illustrate their appearance graphically.

Objective 5: Documenting beliefs will be of two-fold: one will be taken from the *usipon* and another will be from the personal testimonies. The resource persons will be asked of their beliefs on *tawong lipod* and how do the *tawong lipod* affect their way of life. Sociologist and anthropologist will be sought for deeper analysis of the relationship. Figure 2 illustrates the flow of the activities.

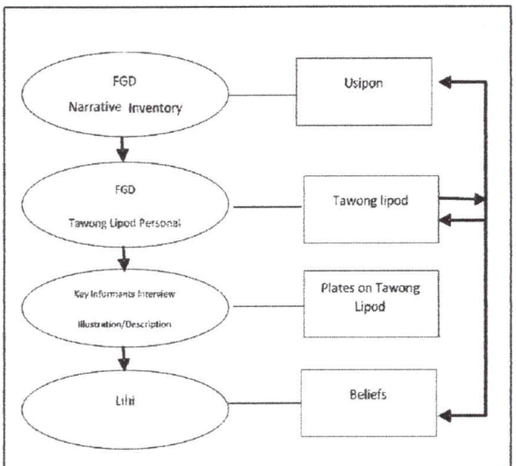

FIGURE 2. Project Framework

IV. Expected Results/Outputs and Dissemination Plan

The following are the expected outputs of this study:

1. Unabridged *usipon* of the Partido *Agta*

- This is a compilation in a book-form of the *usipon* as told by or transcribed from *Agta* resource persons.

2. List of *tawong lipod* characters and their characteristics

- This is a list of various *tawong lipod* featured in the oral literature compiled along with the narratives. The descriptions of the *tawong lipod* will be provided highlighting its notable qualities including the physical and attitude as depicted in the oral narratives and personal testimonies.

3. Narratives of personal encounters of the resource persons with *tawong lipod*

- This is a compilation of personal experiences of the resource persons with *tawong lipod* all throughout their years of existence written in unabridged manner and with corresponding abridged version in English.

4. Plates on *tawong lipod* (as suggested by the panel)

- This will depict the appearance of the *tawong lipod as* graphically illustrated from the lens of Partido Agta resource person. This will also include anthropological and sociological insights on the etymology of the beliefs as they developed from the *usipon suanoys,* the characteristics of *tawong lipod* and how they form our current Bikol culture.

5. Beliefs or *lihi* of the *Agtas* on *tawong lipod*

- This is a treasury of the beliefs of *agta* compiled along with the two sets of narratives: unabridged *usipon* and personal experiences.

The indicators that will determine the success of the objectives of this study are the following:

1. One (1) book/magazine-type compiling the unabridged *usipon,* narratives on personal experiences, *and lihi* of *Agta*
2. Three (3) completed research manuscripts
3. Plates of the *tawong lipod*

The researchers, the educators in the academe, the indigenous people and the Partido community will be the direct beneficiaries of this project.

The research outputs can be a basis for future research undertaking, expanding on the unexplored details that are not articulated in the present study. The indigenous people can utilize the written outputs as a valuable material to support promotion and preservation of

cultural identity through transmission to the younger generation. The educators in Partido can utilize the compiled narratives and plates of *tawong lipod* as an authentic material in instructional delivery and promotion of cultural preservation in Partido. With the outputs, the awareness on the Partido Agta culture and the identity of the Partido culture as a whole will be highlighted in the context of *usipon, lihi* and *tawong lipod.* These three interact and inform the Partido culture.

The dissemination plan of this project will be of four-fold:

1. **Research Presentations.** The three (3) research outputs are intended to be presented in the research fora to inform public.

2. **Publication of Research and Book**. The three (3) research outputs will be submitted for publication for widest dissemination of information. The book as a valuable resource for teaching and learning culture will be submitted to a publishing house for reproduction and publication.

3. **Theatrical Show.** The show will feature the *usipon of* Partido Agta. The performing arts of Partido State University will give life to the *usipon.*

4. **Display of Plates of *Tawong Lipod* in *Museo de Isarog.*** The plates will be displayed in the *Museo de Isarog,* the museum of Partido State University.

5. **Integration in Tourism Festivals and Street Play such as *Tig-Aw* and *Guipaw.***

VI. Work and Financial Plan

Please see attached template.

VII. Ethical Conduct of Project

The potential ethical considerations that may arise from implementing the project include:

1. **Potential impact of research on Agta.** Since Agta are typically shy people, they may tend not to wilfully participate in the focused group discussion or interview. In such case, the researchers will explain and assure the *Agta* community that objectivity will be taken into account and that whatever results the study will produce, confirmation from them will be sought in consideration of the "emic" approach.

2. **Dissemination of Outputs.** Generated information such as personal narratives may contain confidentiality. In such case, consent from the resource persons to include it and publish it has to be secured.

3. **Objectivity.** Objectivity may also be an ethical issue tat may be confronted in the conduct of this study. In such case, the researchers will take into account at all times to consider "etic" perspective in writing the research.

Since the project involves the Indigenous Peoples or *Agtas*, there necessitates to solicit permission to conduct the study from the National Commission of Indigenous Peoples (NCIP) Region V located in Iriga City. The following Indigenous Knowledge Systems and Practices (IKSP) documents will be submitted to or secured from the NCIP Region V:

1. Letter of Intent for Research
2. Application Form
3. Official Receipt (for the filing fee of P500)
4. Research Proposal, containing the following:
    a. Identity of the researcher
    b. Purpose/rationale of research
    c. Methodologies or methods
    d. Materials to be used and data gathering instruments/tools
    e. Scope and limitation of the study (consider the parameters)
    f. Cost and surce of fund of the research
    g. Related information on the intended research
    h. Benefits that the community may derive from the research activity
    i. Period of research and chronology of activities involved
    j. A manifestation agreeing to shoulder the administrative cost incidental to the research activities
    k. Research work plan
5. An undertaking in good faith executed by the applicant that he/she will abide by this Guidelines and/or other requirements
6. Recommendation from the Review Team re: Notice of Sufficiency/Denial
7. Work and Financial Plan
8. IKSP Team Report
9. Resolution of Consent/Denial
10. Memorandum of Agreement
11. Certification Precondition
12. Certificate of Validation by the authorized ICC/IP Representative
13. Submission of Research Output

II. Review of Related Literature

In its convention for Safeguarding of the Intangible Cultural Heritage in 2003, United Nations Educational, Scientific, and Cultural Organization (UNESCO) included oral traditions and expressions in the five domains of proposed intangible cultural heritage (ICH) to be given equal recognition, importance and attention. The Philippines is rich in oral traditions. In fact, two

intangible heritage belonging to this domain have been inscribed on the representative list of the Intangible Heritage List of Humanity: Hudhud Chants of Ifugao and Darangen epic of the Maranao people of Lake Lanao. To safeguard cultural heritage, the National Commission for Culture and the Arts (NCCA) is mandated to "preserve, develop, and promote Philippine art and culture". Documenting or researching on an oral tradition is one way of safeguarding ICH (Margate, 2015)

Bikol region is rich in intangible cultural heritage (Nieva, 2012; Conde, 2015; Conde et al, 2014; Margate, 2014; Margate, 2015; Barbasa, 2010; Conde, 2005; Dery, 1992). Oral traditions as an ICH form part of the sources of the traditional knowledge of the Bikol culture and identity. Insofar as preservation of cultural tradition is concerned, the need to strengthen transmission through documentation of these oral traditions, particularly to the youngsters, is an imperative undertaking. The youth are heavily influenced and preoccupied by technological driving forces of globalization (Matsuura, 2005), with which their interest on this oral tradition is dwindling (Margate, 2015). There have been studies conducted to preserve or document Bikol oral traditions.

In Camarines Sur, two (2) studies were conducted in order to safeguard oral traditions (Margate, 2015; Margate 2014). Studies on *Lagaylay, a dance* in Canaman, Camarines Sur, and Pastora, a song-dance performance during Christmas season were undertaken. In her study on *Lagaylay*, she identified the parts of the dance and the different roles played by the participants. Phenomenological methodology was used and an emic approach was applied. Unstructured and structured interviews, focus group discussion, video and audio documentation, and participant observation were also employed. On the other hand, Margate's study on *Pastora* documented the *Pastora* performance in the two towns, Baao and Bombon in Camarines Sur. It used a qualitative study focusing on the production aspect and made use of real time data: videotaped Pastora dances, observer's notes, expost facto data and stimulated recall interviews. Interviews and video documentary were the main instruments of the study. These two studies relatively share the objectives of the present study which is to document cultural intangible heritage using a qualitative research design. The present study, however, will focus on the culture of Agta communities in Partido.

Bikol region is also home to indigenous peoples. Studies related to Agta and their intangible cultural heritage have also been undertaken. Maria Corazon Rico of Bicol University studied the subculture of the Agta learners in Iriga City, Bicol region. Her study described the context of the Agta learners' community and school. It presented life stories of 20 Agta key informants. From the life experiences of the Agta, philosophical, psychological and socio-anthropological insights were drawn. Methods such as participant observation, interviews, documentary review and analysis, surveys, checklists, informal conversations and home visits. The present study will also take into account life's experiences of the *Agta,* but not on the school and learners' context. It will document the experiences of *Agta* on their encounters with the *tawong lipod* as part of their culture.

In 1992, Dery's study focused on five Bikol oral accounts: *The Lakandulas of Sorsogon, The Escandor Family's Story About Don Pedro Manook, The Legend of Doña Maria Uray, The Legend of the Giant, Man-eating Mampak Bird* and *The Historic Don Pedro Estevan*. It confirmed the connection between folklore and history by demonstrating that folk stories were once historical fact. The present study will also focus on oral accounts or operationally termed in the study as *usipon* of Agta. Though these *usipons* are posited to contribute in shaping the way of life of the Partido Agta, the present study will not prove that the *usipons of* Agta were once historical fact.

In 2014, Conde made a study on hybrid Christianity and ethnobotany in the oral narratives of the Agtas in Mt. Asog. It investigated on the hybrid form of belief manifested in stories on the

visible and invisible beings. It posited that the belief in the power of plants and animals is instrumental for different relations between human beings and various invisible entities. A part of the present study will similarly look into the belief manifested in the oral narratives or locally known as *usipon,* but not a belief that is of hybrid form. Unlike the study of Conde (2014), this study will not touch on Christianity. Both studies, however, delve into the oral narratives of Agtas in the Bikol region in order to identify traces of beliefs. The difference is on the resource persons, which in this paper Partido Agta will be used while in Conde's paper, Agta in Mt. Asog serve as the key informants. Both of the papers describe and document the oral literature of the Indigenous Peoples. In his paper, Conde mentioned a *luuk,* which is classified as an invisible being. Two classifications are mentioned: visible and invisible. On the other hand, the present study will not classify supernatural beings manifested in the *usipon.* It will purely describe and document the *tawong lipod* and *lihi* from the lens Partido *Agta*

All the studies mentioned in this literature review are found relevant in the present study and focused on the preservation of intangible cultural heritage with some involvement of *Agta* and *tawong lipod.* However, none of these surveyed studies explored on the *usipon and lihi of* Partido *Agta on tawong lipod.*

VIII. Team Composition

The responsibilities and the composition of the research team are detailed below:

Josenia M. Penino Team Lead

- Prepare the project proposal
- Overseer and ensures that all planned research activities are conducted on the planned schedule
- Secure permission from the NCIP Region V regarding the conduct of the study

Charlie V. Balagtas Member

- Coordinate with barangay officials with IP communities
- Conduct focus group discussions
- Conduct interviews
- Write the manuscript

Sheila E. Amoroso Member

- Manages the dissemination plan
- Prepare and produce book-type utput-narratives and illusttrations
- Conduct interviews
- Conduct focus group discussions
- Write the manuscript

Josefina A. Borromeo Member

- Manages the dissemination plan
- Prepare and produce book-type output-narratives and illustrations
- Conduct interviews
- Conduct focus group discussions
- Write the manuscript

References

Barbaza, R. (2010). Orosipon kan Bikolnon: Interrupting the Nation. Kritikakultura ejournal of literary / cultural and language studies, No. 14, February 2010.www.ateneo.edu/kritikakultura

Choe, J.H. (2004). International Conference Globalization & Intangible Cultural Heritage. Retrieved from http://unesdoc.unesco.org/images/0014/001400/140090e.pdf

Conde, C. (2005). A Study of Usipun and the Bikol Narrative Tradition. Doctoral Dissertation, University of the Philippines, Diliman, Quezon City.

Conde, C., et al. (2016). Metonymies of Tawong lipod in Cagliliog, Tinambac, Camarines Sur: countermemory to Christain Hegemony in Bikol, Philippines. Retrieved from https://doi.org/10.1166/asl.2016.6693

Dery, L. C. (1992). Bikol History in Bikol Folklore: Documentary Evidences of Five Bikol Oral Traditions. The Journal of History, 36-37(1-2). Retrieved from http://ejournals.ph/form/cite.php?id=5193

Headland, T. (2005). Agta Negrito of the Philippines. Retrieved from http://www.culturalsurvival.org

Matsuura, K. (2005). Globalization, Intangible Cultural Heritage and the Role of UNESCO International Conference Globalization and Intangible Cultural Heritage. Retrieved from http://unesdoc.unesco.org/images/0014/001400/140090e.pdf

Nieva, L. (2012). Osipon sa Tolong Taramon: The Oral Folk Narratives of Partido in Three Languages (Manila: The National Commission for Culture and the Arts/ NCCA).

Nolasco, R.M. (2015). The Bikol Agtas. The National Commission for Culture and the Arts. Retrieved from http://ncca.gov.ph/subcommissions/subcommission-on-cultural-communities-and-traditional-arts-sccta/central-cultural-communities/the-bikol-agtas/

Rashidi, R. (2000). Black People in the Philippines. Retrieved from http://www.cwo.com

Rico, J. (_____).The Subculture of the Agta Learners in Bicol Region, Philippines. Retrieved from http://103.86.185.118/libw/sites/default/files/Full%20paper%20APA.pdf

UNESCO. (2003). What is Intangible. Retrieved from https://ich.unesco.org/doc/src/01851-EN.pdf

UNESCO. (1997), *Educating for a Sustainable Future: A Transdisciplinary Vision for Concerted Action*. Retrieved from http://www.unesco.org/education/tlsf/mods/theme_a/popups/mod01t05s01.html#112